

Public Office (Accountability) Bill

Seven amendments for the House of Lords

For the first time in modern democratic history, this Bill makes it a crime for a public official to deliberately deceive the public. It will bind the Prime Minister, the Cabinet, civil servants, the police, the armed forces and the NHS. It will not bind the members of either House who are passing it into law, any of the devolved legislators, and it will not bind judges either.

These amendments correct these unjust and highly damaging errors. They were drafted by Lewis Power KC, Colin Witcher and Anthony Eskander, both junior barristers, working with Marcus J Ball, the private prosecutor in *Ball v Johnson* in 2019 and the only person in British legal history to have privately prosecuted a senior politician for lying. The drafting reflects what that case exposed: how an offence of this kind can be manipulated in court when its central terms are left undefined.

1. Safeguarding Amendment

THE PROBLEM

Members of both Houses have raised a series of practical concerns about being brought within this offence. This amendment answers each of them on the face of the Bill, rather than leaving them to be settled case by case over decades at the expense of the justice system.

THE AMENDMENT

Clause 12: Offence of misleading the public

Clause 12, page 14, line 3, at end insert—

“(6B) Without limiting subsection (6)(b), the following circumstances may constitute a reasonable excuse, except where a paragraph expressly provides otherwise—

- (a) the act consisted solely of an honest mistake, an honestly held belief later found to be incorrect, an honestly made but unfulfilled promise, or an honestly intended but incorrect prediction of future events;
- (b) the act was merely negligent rather than recklessly deceitful, in that they were not aware of a substantial risk that the act was deceitful and did not proceed in disregard of such a risk;
- (c) where the allegation is that they deliberately chose not to expose themselves to information correcting their act, it is a defence if they can show they did not intentionally avoid such information and took reasonable steps to become aware of information that might contradict it;
- (d) at the time of the act they warned the public that there was a material risk of inaccuracy or incompleteness in good faith;
- (e) the act consisted solely of the expression, in good faith, of an opinion or belief protected by Article 10 of the Convention rights within the meaning of the Human Rights Act 1998, and its prosecution would chill or restrict freedom of expression and debate;

(f) the act was said or done in proceedings in Parliament, where it was protected by parliamentary privilege, or in proceedings of a devolved legislature, which do not enjoy parliamentary privilege under the Bill of Rights 1689, and thus this limb provides a statutory exemption, so that it does not constitute an offence under this section;

(g) the act was reasonably necessary to prevent a serious and imminent threat to national security or the national economy; or

(h) before the act caused or contributed to causing harm they retracted or corrected the act, issued a public apology, and ensured that the retraction or correction and apology had comparable prominence to the original act.”

EXPLANATORY STATEMENT

This safeguarding amendment addresses concerns raised by parliamentarians regarding their inclusion within the “Misleading the Public” offence in section 12 by specifying matters that may amount to a reasonable excuse for the purposes of the defence in clause 12(6)(b), so as to facilitate their inclusion within that offence. (48 words)

2. All Legislators Amendment

THE PROBLEM

As currently worded, the Public Office Accountability Bill’s offences of duty of candour and assistance and Misleading the Public offence will not apply to the very law makers making them. When this bill becomes law, the press will jump on this as the biggest example of the hypocrisy of Parliament ever. The public will be told that Parliament has criminalised lying to the public by nearly everyone apart from themselves. This will cause catastrophic damage to public trust in Parliament, and rightly so. This disaster needs to be averted immediately.

Boris Johnson was a member of Parliament when he made these statements. He was not a government minister. The point is made very clearly in the video at the top of execprosec.com/amendments.

Also, here are what people on the street in Soho think about legislators excluding themselves:

Video: watch at execprosec.com/amendments

THE AMENDMENT

In Schedule 2, Part 2, paragraph 3, after sub-paragraph (1), insert:

“(1A) A member of either House of Parliament, the Scottish Parliament, Senedd Cymru or the Northern Ireland Assembly, or a publicly declared or duly nominated candidate for election as such a member, is also a public official, and campaigning by such a person in connection with an election or referendum held under an enactment is a function exercised in that capacity.”

EXPLANATORY STATEMENT

This amendment brings members of both Houses and the devolved legislatures, and declared or nominated candidates, within the Duty of Candour and Assistance and the offence of failing to comply with it. It also applies the offence of Misleading the Public to their election and referendum campaigning. (47 words)

3. Amendment to rename the “Misleading the Public” offence

THE PROBLEM

The heading “Misleading the Public” suggests a much broader offence than clause 12 creates. A person cannot commit it merely through an accidental or inadvertently misleading error. Liability requires intention or recklessness as to misleading the public, significant or repeated dishonesty, serious impropriety, harm or potential harm, and a significant departure from proper public functions. “Deceiving the Public” therefore describes the offence more accurately and reduces the risk of misconceived complaints.

THE AMENDMENT

In clause 12 and elsewhere in the Bill, so far as relating to the offence under clause 12, for “Misleading the Public” and “Mislead the Public” substitute “Deceiving the Public” and “Deceive the Public” respectively.

EXPLANATORY STATEMENT

This amendment changes the clause 12 offence from “Misleading the Public” to “Deceiving the Public” and makes corresponding changes throughout the Bill, reflecting that liability requires intentional or reckless deceit, significant or repeated dishonesty and serious impropriety, and cannot arise from accidental or inadvertently misleading error. (46 words)

4. Amendment defining “in their capacity as such an authority or official”

THE PROBLEM

Clause 12 will fail if a public authority or official can use the status, authority, credibility, information, access or platform of office, then argue that the conduct was private, personal, or merely political. A very similar complexity within the common law offence of Misconduct in Public Office was exploited by Boris Johnson when he was prosecuted for deceiving the public in 2019. Unless Parliament addresses both the capacity requirement in subsection (1) and the functions requirement in subsection (3)(c), the same argument could render this offence unusable in court.

THE AMENDMENT

Clause 12: Offence of misleading the public

Clause 12, page 13, line 8, at end insert—

“(1A) For the purposes of this section, a public authority or public official is to be treated as acting in that capacity and as exercising their functions as such if, having regard to all the circumstances, in doing the act they use, rely on or benefit from any status, authority, influence, information, opportunity, platform, access, credibility, responsibility, function, power or resource which arises, or purports to arise, from that capacity, whether or not the act is also done in another capacity or for another purpose.”

EXPLANATORY STATEMENT

This amendment prevents a public authority or public official from using office-derived status, authority, information, platform, credibility or resources while denying that the act was done in that capacity or in exercising official functions. It makes liability depend on the substance of the act, not the defendant’s asserted capacity. (49 words)

5. Amendment defining “matters of significant concern to the public”

THE PROBLEM

Clause 12 does not define “matters of significant concern to the public”, although that phrase determines the scope of criminal liability. This creates uncertainty for public authorities, officials, candidates, police, prosecutors and courts, and invites misconceived complaints and unnecessary litigation. The Bill should identify the serious public matters capable of engaging the offence and make clear that public attention or possible electoral effect does not, by itself, bring a person’s private life, personal relationships or personal conduct within it.

THE AMENDMENT

Clause 12: Offence of misleading the public

Clause 12, page 13, line 20, at end insert—

“(3A) For the purposes of subsection (3)(a), a matter is of significant concern to the public only if it materially concerns the exercise of public functions; the use of public power or of public funds or resources; public safety, national security or public health; the administration of justice; the integrity of public institutions; governmental or legislative decision-making; the administration or integrity of an election or referendum; or a proposal, policy or referendum question presented to electors.

(3B) A matter is not of significant concern to the public merely because it relates to a public official’s private life, personal relationships or personal conduct, or attracts public attention, unless it also materially concerns a matter within subsection (3A). A statement or representation about such a matter is to be treated as materially concerning the integrity of public institutions if it is made or used by a public authority or public official for the purpose of influencing public confidence in, or public judgment concerning, the exercise of public functions, conduct in public office or accountability for public decisions.”

EXPLANATORY STATEMENT

This amendment defines “matters of significant concern to the public” for clause 12. It confines the offence to serious matters involving public functions, power, resources, safety, security, health, justice, institutions and democratic decision-making, while excluding purely private matters unless they also materially concern one of those matters. (47 words)

6. Amendment adding judicial office holders and coroners

THE PROBLEM

The Bill recognises judges and coroners as holders of public office, yet Schedule 2 excludes an individual solely by virtue of acting in a judicial capacity. Those who hear cases and determine their outcomes should not be exempt from the same standards of candour and public honesty as other public officials. Such an exemption would seriously undermine confidence in the administration of justice.

THE AMENDMENT

In Schedule 2, Part 2, paragraph 3(5), after sub-paragraph (b), insert—

“(c) in the case of an office, the holder of the office exercises judicial functions or is a judicial office holder within the meaning given by section 109(4) of the Constitutional Reform Act 2005.”

In Schedule 2, Part 2, paragraph 3(6)(a), leave out “acting in a judicial capacity or”.

EXPLANATORY STATEMENT

This amendment brings judicial office holders and coroners within the definition of “public official” for the Duty of Candour and Assistance and the offence of Misleading the Public, and removes the exclusion for acts done in a judicial capacity. (39 words)

7. Amendment applying the offence to AI and synthetic impersonation

THE PROBLEM

AI-generated and digitally manipulated material can make a real Government Minister, police officer or other public official appear to say or do something they never said or did. It can also invent a wholly fictitious public official and present fabricated statements or conduct as genuine. Both forms could manipulate elections and referendums, fabricate official wrongdoing, inflame public disorder and destroy public trust. Where a person intends the public to believe that synthetic material is a genuine statement or act of a real or fictitious public authority or public official, they should not escape clause 12: by deliberately exploiting the trust, status, authority, influence, power or resources associated with that authority or office, they should be treated as acting in that capacity and subject to the same criminal liability.

THE AMENDMENT

Clause 12: Offence of Misleading the Public

Clause 12, page 14, line 21, at end insert—

“(8A) For the purposes of this section, a person who creates, publishes or causes publication of an AI-generated or otherwise digitally created or manipulated representation purporting to be a genuine statement or act of a real public authority or public official, or of a fictitious person or body presented as such, is to be treated as a public authority or public official of the description represented, and as acting in that capacity and

exercising the functions represented.”

EXPLANATORY STATEMENT

This amendment treats creators and publishers of synthetic material purporting to be a genuine statement or act of a real public authority or official, or a fictitious person or body presented as such, as a public authority or official of the description represented for clause 12. (46 words)
